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Distribution List

All employees

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Policy on Maternity Benefit

Statement of the Policy

Aligned Automation provides the Maternity Benefit to its female employees to regulate the employment of women in the organization for a certain period before and after childbirth. To ensure that all the obligations are met as mandated by the statutes of the state.

Purpose of the Policy

To protect the employment of women during the time of her maternity and entitles her of a 'Maternity Benefit' – i.e. full paid absence from work – to take care of her child. The act applies to all female employees.

Applicability

All-female employees (Regular, Probationers, and Trainees) must have completed at least 80 days of service from the date of joining with the company.

Leave Benefits

- 182 days of paid Maternity Leave is allowed for the first two deliveries and 84 days for the third delivery
- The applicant can avail eight weeks (56 days) leave before the date of delivery and rest leave

post-delivery eighteen weeks (126 days) **The maximum leave benefit under normal circumstances will be 26 weeks (182 days)**

- In case of any complications such as illness arising during pregnancy, post-delivery, or premature birth of a child (Certificate from the gynecologist has to be submitted) the woman is eligible to avail leave with wages for a maximum additional period of one month
- In the case of tubectomy 2 weeks, leave can be availed
- Intervening festival Holiday/weekly off days will be counted as part of leave. National / declared holidays will not be considered as part of leave.
- An employee on Maternity Leave can club her unused privilege leave and casual leave along with her maternity leave on prior approval
- Un-availed Maternity Leave is **non-cashable**

Miscarriage

In case of miscarriage and medical termination of pregnancy, an employee shall, on the production of appropriate medical proof, be entitled to leave with a salary at the rate of maternity benefit for six weeks immediately following the day of her miscarriage.

Adoption or Surrogacy

In case of adoption of a child below the age of three months or a commissioning mother both shall be entitled to maternity benefit for twelve weeks from the date the child is handed over to the adopting mother or the commissioning mother, as the case may be.

Leave for Illness arising out of Pregnancy

- Any employee suffering from illness arising out of pregnancy, delivery, premature birth of a child (Miscarriage, medical termination of pregnancy or tubectomy operation) is entitled to 4 weeks leave with pay, in addition to 26 weeks leave
- The employee shall produce a valid medical certificate from a registered medical practitioner along with her leave application and forward it to the HR team minimum 2 weeks in advance
- The leave benefit under this clause is permissible only for the purpose it is intended for

Loss of Pay (LOP):

- Leave without Pay are approved leaves which can be sanctioned only when the employee is medically unfit and unable to resume her duties and has availed leave under clause (leave for illness arising out of Pregnancy)
- In such cases, the employee shall produce a medical certificate stating the valid reason for such leaves.
- In normal circumstances, the benefit under this clause is limited to 4 weeks in addition to leaves provisioned

Guidelines

- Before availing this leave, the employee should give written notice to the employer about Six (36 days) weeks before the date of her delivery that she will be absent / on leave by mentioning nominee details (Form 1). Also, a certificate from the gynecologist is to be submitted mentioning the expected date of delivery (Form 2).
- 2 Nursing breaks per shift would be allowed to the nursing mother until the child attains the age of fifteen months
- Maternity Benefit cannot be compensated in case the employee is leaving in the said duration
- Leave deductions (Leave without pay and Notice Period) shall be calculated at the rate of **Monthly gross payroll salary**.
- Nominee – If a female employee is entitled to maternity benefit dies before receiving such benefit, the employer shall pay such benefit to the person nominated by the women and in case there is no such nominee, to her legal representative.
- Forfeiture of Maternity Benefits – At the time of MATERNITY LEAVE if the employer finds that the beneficiary is working for other establishment or industry then under the provisions of sections 6 for any period during such authorized absence, she shall forfeit (lose) her claim to the maternity benefit for such period.

Pay Benefit

An additional amount of Rs.3500/- will be paid as a one-time “Medical Bonus”.

Resignation post Maternity Benefit.

If an employee wishes to exercise her option to resign her employment immediately after availing the leave with salary benefit under “Maternity” is accepted only on medical grounds. In such a case, the reasons stated in the medical report will be mentioned in the relieving letter.

Note: Any exceptions would have to be approved by the relevant authority.